

Mahendra Pratap Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 March 2016 · Writ-C No. 10563 of 2016 · **Writ dismissed; petitioner relegated to Supply Code remedies.**

HEADNOTE

A Division Bench declined Article 226 interference with an impugned order that raised a factual dispute, holding that the petitioner may take such recourse as is available under the U.P. Electricity Supply Code, 2005, and dismissed the writ.

FACTUAL SUMMARY

Mahendra Pratap Singh filed Writ-C No. 10563 of 2016 in the Allahabad High Court against the State of Uttar Pradesh and eight others, challenging an impugned order. The petition came before Vikram Nath and Amar Singh Chauhan, JJ. The papers as placed before the Court presented a controversy the Bench treated as a factual dispute, in a matter for which the U.P. Electricity Supply Code, 2005, provides recourse.

HOLDING-UNITS

INTERPLAY · UP-2005

Article 226 — factual dispute and Code remedies

HOLDING

Where the petitioner is aggrieved by an impugned order that raises a factual dispute, the High Court will not try those facts under Article 226; the petitioner may take such recourse as is available under the U.P. Electricity Supply Code, 2005. The writ petition was dismissed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE IMPUGNED ORDER AND THE UNDERLYING FACTUAL CONTROVERSY

The Court refused Article 226 interference and left the petitioner to remedies under the 2005 Code. ¶ 1